

Roll of DISHONOUR

KANCHAN K. SANYAL

C&CES

FIR: August 29, 2003

Then: Deputy Commissioner,
Customs, Kolkata

Now: Under suspension

Date of Chargesheet: NA

Status: Under trial

KRISHNA A. MISHRA

C&CES

FIR: October 25, 1999

Then: Assistant
Commissioner, Inland
Container Depot, Jaipur

Now: Additional

Commissioner, Delhi

Date of Chargesheet: NA

Status: Departmental action
recommended

K. K. DHAWAN

IRS

FIR: May 20, 1999

Then: Deputy Chief
Commissioner, Income Tax,
Surat

Now: In Chennai since 2006

Date of Chargesheet: NA

Status: Departmental action
recommended

K.K. TRIPATHY

IRS

FIR: April 17, 2004

Then: Joint Commissioner,
Income Tax, Kolkata

Now: NA

Date of Chargesheet: NA

Status: Under trial

G.M. BRAHMBHATT

IRS

FIR: October 23, 2003

Then: Deputy Director, Income
Tax (investigation), Anand,
Gujarat

Now: Deputy Commissioner,
Gujarat

Date of Chargesheet: NA

Status: Under trial

INTERVIEW | CBI DIRECTOR VIJAY SHANKAR

"We get about 14,000 complaints every year

CBI Director Vijay Shankar is among the few officers whose term was extended when retirement was due. He spoke with Principal Correspondent SHYAMLAL YADAV. Exerpts:

Q. Officers accused of corruption carry on with their work even when investigations are going on. What steps have you taken to speed up investigation?

A. There is no mandatory period prescribed in law for filing a chargesheet against any accused. All investigations are, however, completed as expeditiously as possible. As an internal control mechanism, a period of one year is prescribed for completing investigations in a case. However, the process does take longer in many cases due to various factors including complexity and magnitude of the case. Investigations in over 90 per cent of the cases are completed within two years.

Q. How many complaints does the CBI receive every year and how do you act?

A. We receive about 14,000 complaints every year.

Q. Does the CBI need more powers to deal with corruption in the bureaucracy?

A. It is mandatory for CBI to take approval of the Central government before registering a case against a joint secretary and above officers. This favours senior functionaries and needs to be done away with.



departmental inaction against them is even more disturbing. The information supplied by DOPT suggests that at least eight IAS officers retired after FIRs were registered against them but before any action was taken. In the case of two of the officers, sanction for their prosecution came just a few days before they were due to retire.

Even worse was the state of affairs in the Home Ministry which is the cadre controlling authority for IPS officers. When INDIA TODAY sent it a list of 17 IPS officers against whom CBI had registered cases over the years, the reply received simply stated: "Two officers expired and as such no action is called for. In respect of seven officers, investigations by CBI are under progress. Cases against eight officers are under trial before the respective CBI courts and are sub judice. Departmental action, if any, will be taken only on culmination of cases before the courts and on the basis of the outcome of the investigation by CBI."

Matters are no different at the Central Board of Excise and Customs. Out of 47 customs and central excise services officers charged with corruption, only two were dismissed from the service while three others faced minor penalties, still others were ac-

quitted for want of evidence and as for the rest, it's a long wait for their fate as their cases "are still under consideration".

The pace of departmental action would make even the Indian judiciary—cumbrous at the best of times—appear to work like a well-oiled machine. From the time a case is registered to when it is sent for approval from the minister concerned takes a minimum of up to two years, which gives most of the accused, usually well connected and skillful in the art of greasing palms, enough time to influence the authorities at every step. On an average, it takes about 10 years for initiation of departmental action, in many cases even longer. Sources in CBI concede that conviction under the Prevention of Corruption Act is a rare occurrence. The CBI is also hampered by jurisdictional problems (*see interview*) that do not permit it to initiate action against any officer beyond the Central government on its own. Further, it cannot register an FIR or investigate against officers of the rank of joint secretary and above. The only damage to a person facing a corruption case is a dent in public image, which is no dent at all since most of the audacious types are also blessed with thick skins.